

Court No. - 21

Case :- WRIT - C No. - 18182 of 2023

Petitioner :- Hempal

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Dheeraj Kumar Tiwari

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

Lay before a Bench of which one of us (M.K. Gupta, J.) is not a member, after obtaining nomination from Hon'ble the Chief Justice, if possible as a fresh case on 31.05.2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 25.5.2023

SL

Court No. - 40

Case :- WRIT - C No. - 18182 of 2023

Petitioner :- Hempal

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Dheeraj Kumar Tiwari

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi,Ravi Anand Agarwal

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Manjive Shukla,J.

1. Heard learned counsel for the petitioner; learned Standing Counsel and Shri Ravi Anand Agarwal, learned counsel for Electricity Department.
2. Present writ petition has been preferred for quashing the demand notice dated 30.10.2021 of Rs.1,42,069/- and demand notice dated 30.11.2021 of Rs.1,43,069/- and for a direction to respondents not to take coercive action against the petitioner pursuant to impugned demand notices.
3. Learned counsel for the petitioner states that while fastening the liability upon the petitioner, respondent authorities have given complete go-bye to the procedure provided under the Electricity Act, 2003 (in brevity the 'Act 2003') and the U.P. Electricity Supply Code, 2005 (in brevity the 'Code 2005'). Under Part XII Section 126 of the Act 2003 provides assessment after investigation. Sub Section 3 of Section 126 contemplates that the person, on whom an order has been served under sub-section (2) shall be entitled to file objections, if any, against the provisional assessment before the assessing officer, who shall, after affording a reasonable opportunity of hearing to such person, pass final order of assessment within thirty days from the date of service of such order of provisional assessment, of the electricity charges payable by such person. However, in the present case, no such procedure has been adhered by the respondent authorities as such, the impugned recovery citation is liable to be quashed.
4. Considering the facts and circumstances of the case, we are of the considered opinion that the entire process, which has been adopted by the respondent-electricity department, is per se unsustainable and as such the entire proceeding including the impugned demand notices are set aside. The respondent-authority is free to proceed against the petitioner in accordance with law.
5. The writ petition stands **disposed of** accordingly.

Order Date :- 31.5.2023

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